

Anokh Kumar @ Nukki vs Anjana Rajak on 11 July, 2018

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M.A. No.2311/2017

THE HIGH COURT OF MADHYA PRADESH

M.A. No.2311/2017.

(Anokh Kumar @ Nukki Rajak Vs. Anjana Rajak and another.)

Jabalpur, dated 11.07.2018.

Shri A.K. Pandey, Advocate for the appellant.

Shri S.K. Rajak, Advocate for the respondents.

Heard on the question of admission.

By the instant appeal, the appellant is seeking quashment of the order dated 21.08.2017 passed by the Additional District Judge, Nagod, District Satna by which the application filed by the respondents under Order 9 Rule 13 of the Code of Civil Procedure was allowed.

As per the facts of the case, the appellant filed a Civil Suit under Section 12, 5(2) of Hindu Marriage Act, 1955 for declaring the marriage solemnized in the year 2003 as null and void. The said suit was decided ex-parte vide order dated 26.02.2015 and decree was passed in favour of the appellant declaring the marriage void.

The respondent No.1/wife of the appellant came to know about such ex-parte decree on 11.03.2015 from some relative of the appellant, then she moved an application under Order 9 Rule 13 of the Code of Civil Procedure for setting aside the said decree stating therein that no notice was served upon her regarding proceeding of Section 12, 5(2) of Hindu Marriage Act and as such, she could not appear before the Court to submit her stand and ex-parte decree was fraudulently obtained by the appellant. She submitted that she resides with her father at village Itma, Tehsil Devendra Nagar, Panna. She had stated that she was never served any notice from the Court and ex-parte decree has been obtained against her.

The application was replied by the husband/appellant saying that the notice was duly served upon the respondent No.1/wife but she deliberately did not appear before the Court and again by way of paper publication, notice got served and despite that she did not appear before the Court then only the Court had proceeded ex-parte and passed ex- parte decree.

The Court below framed the issues for deciding the application and also recorded the evidence of the parties. The Court below has observed that in view of statements of the husband/appellant that he has admitted that village Itma is at the distance of about 3 to 4 kilometers from Devendra Nagar and Itma is a very rural area. He has also admitted that he is not in a position to say whether respondent No.1 gets any newspaper or not. He is also not in a position to substantiate whether in the village where respondent No.1 is residing that newspaper is in circulation or not. He has further admitted

that he has never discussed about deserting the respondent No.1 with her father. He has also admitted that he has filed the suit for seeking a decree of divorce suppressing this fact from the wife/respondent No.1 and he has also admitted that his intention was clear for not intimating this fact to his wife/respondent No.1. He was also not sure whether the notices issued to the respondent No.1 got served upon her or not.

In view of the evidence adduced by the parties and admission made by the appellant/husband, the Court below arrived at a conclusion that the ex-parte decree passed in favour of the appellant/husband is not liable to be sustained and has, therefore, set aside by allowing the application of Order 9 Rule 13 of the Code of Civil Procedure imposing a cost of Rs.1,000/-. In view of the observations made by the Court below and looking to the nature of dispute and other existing circumstances, I do not find any infirmity in the order passed by the Court below and as per the law laid down by the Supreme Court as well as this Court in number of cases that as far as possible, the matrimonial disputes should be resolved on the basis of merits of the case and the Court should avoid granting ex-parte decree in favour of the party in matrimonial matters.

In view of the above, there is no substance in the appeal. Accordingly, it fails and is hereby dismissed.

(SANJAY DWIVEDI) JUDGE Devashish